



Mixed Case

Overview

A mixed case occurs when an employee contests an action appealable to the Merit Systems Protection Board and claims the action was taken as the result of discrimination based on race, color, religion, sex, national origin, age, disability, or genetic information. The employee can elect to contest the case either through the MSPB or the Equal Employment Opportunity Commission.

This Quick Start Guide covers the following Key Points:

1. [General provisions](#)
2. [Election](#)
3. [Burden of proof](#)
4. [Statute of limitations](#)
5. [Notice](#)
6. [Appeals process](#)
7. [Special Panel](#)

Key Points

These key-point summaries cannot reflect every fact or point of law contained within a source document. For the full text, follow the link to the cited source. The references to **Broida** and **Hadley** in this Quick Start Guide are to federal employment law expert Peter Broida's treatise, *A Guide to Merit Systems Protection Board Law and Practice* (Dewey Publishing, Inc.), and federal employment law expert Ernest Hadley's treatise, *A Guide to Federal Sector Equal Employment Law and Practice* (Dewey Publishing, Inc.), respectively, to which cyberFEDS® has exclusive Web rights.

General provisions

- Significant provisions covering mixed cases are found at [29 CFR 1614.302](#), [5 CFR 1201.151](#), and [5 USC 7702](#).
- **Hadley:** A mixed case complaint is a complaint of employment discrimination filed with a federal agency based on race, color, religion, sex, national origin, age, or handicap related to or stemming from an action that can be appealed to the Merit Systems Protection Board (MSPB). The complaint may contain only an allegation of employment discrimination or it may contain additional allegations that the MSPB has jurisdiction to address. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Definition of Mixed Cases and Appeals, citing 29 CFR 1614.302, EEOC MD-110, Chapter 4.](#)
- An appeal to the MSPB is available only in cases in which the adverse action in question falls within the board's jurisdiction, such as in the case of removal or suspension for more than 14 days. [5 USC 7512](#); [5 USC 7513](#) (a), (d); [5 USC 7701](#) (a). If the MSPB has jurisdiction to review an agency action against an employee, Congress has also authorized it to adjudicate the employee's claims of discrimination that would otherwise fall outside the board's jurisdiction. [5 USC 7702](#) (a)(1); [29 CFR 1614.302](#). Such a case is referred to as a "mixed case appeal." [29 CFR 1614.302](#) (a)(2). *Conforto v. Merit Systems Protection Board*, [113 LRP 16708](#) (Fed. Cir. 2013).
- When an employee complains of a personnel action appealable to the MSPB and alleges that the action was based on discrimination, she said to have brought a "mixed case." *Kloeckner v. Solis*, [112 LRP 58512](#), 133 S. Ct. 596 (U.S. 2012), [citing 29 CFR 1614.302](#).
- A mixed case that is filed with the EEOC is known as a mixed case complaint. There is no right to a hearing before an EEOC administrative judge on a mixed case complaint. [29 CFR 1614.302](#); [EEOC MD-110, Chapter 4.](#)
- A mixed case that is filed with the MSPB is known as a mixed appeal. [5 CFR 1201.157](#); [EEOC MD-110, Chapter 4.](#)
- **Broida:** The period for filing a mixed case appeal is not the same as the deadline that applies to an appeal taken directly to the MSPB from an agency decision. An employee may initiate a mixed case directly with the MSPB, through agency EEO procedures, or through arbitration procedures under a collective bargaining contract. [Broida Guide to MSPB Law and Practice: Multiple Filing Options; Pleading Requirements; Timing of MSPB Appeal](#); [29 CFR 1614.301](#), [29 CFR 1614.302](#).
- **Broida:** The administrative process, if followed to completion, is for those with stamina. The mixed case is more complex than the case without discrimination issues because of regulatory restraints on the MSPB's acceptance of jurisdiction, the right of review by the EEOC as to discrimination issues after a final MSPB decision, and the special procedures for judicial review. If the appellant's case moves through the whole rigmarole in the designated time frames, it will take close to three years to finish the case. [Broida Guide to MSPB Law and Practice: Multiple Agency Review Processes.](#)
- **VA employees:** In adverse actions taken under [38 USC 714](#), the time limit set forth at [38 USC 714](#) (c)(4)(B) does not prevent an employee from filing a mixed case appeal pursuant to [5 USC 7702](#) (e)(2). *Wilson v. Department of Veterans Affairs*, [122 LRP 13980](#) (MSPB 2022).
- The MSPB has authority to grant compensatory damages in mixed case proceedings. *Crosby v. U.S. Postal Service*, [98 FMSR 5191](#), [78 MSPR 263](#) (MSPB 1998).

Election

- **Broida:** An individual who has been subjected to an action appealable to the MSPB and believes that that action was based on discrimination may either file a timely formal discrimination complaint with the agency regarding the action, or file an appeal with the MSPB within 30 days of the appealable action, but not both. [Broida Guide to MSPB Law and Practice: Multiple Agency Review Processes](#), citing [5 CFR 1201.154](#) (b); *Gomez-Burgos v. Department of Defense*, [98 FMSR 5287](#), [79 MSPR 245](#) (MSPB 1998).
- An employee must choose between filing with the MSPB or the EEOC, and the election of forum is irrevocable. *Archuleta v. Department of Agriculture*, [86 FEOR 20895](#), EEOC No. 01851427 (EEOC 1986).
- Whatever action the individual files first is considered an election to proceed in that forum. Filing a formal EEO complaint constitutes an election to proceed in the EEO forum. Contacting an EEO counselor or receiving EEO counseling does not constitute an election. [EEOC MD-110, Chapter 4](#).
- If the MSPB's administrative judge finds that the MSPB does not have jurisdiction over the matter, the agency shall recommence processing of the mixed case complaint as a non-mixed case EEO complaint. [29 CFR 1614.302](#) (c)(2)(ii); [EEOC MD-110, Chapter 4](#).
- Although the complainant elected to proceed with the MSPB regarding his denial of reasonable accommodation claim, once the MSPB dismissed his appeal for lack of jurisdiction, the agency should have processed the discrimination claim as an "unmixed" matter in accordance with [29 CFR 1614.302](#) (c)(2)(ii). *Crutch v. U.S. Postal Service*, [112 LRP 19154](#), EEOC No. 0120120778 (EEOC OFO 2011).
- A case dismissed by the MSPB for a lack of jurisdiction ceases to be a mixed case and may be pursued solely as an EEO complaint. *Bryner v. Social Security Administration*, [96 FEOR 10077](#), EEOC No. 03960011 (EEOC OFO 1996).
- **Hadley:** An agency must inform every employee who is the subject of an action that is appealable to the MSPB and who has either orally or in writing raised the issue of discrimination during the processing of the action of the right to file either a mixed case complaint with the agency or to file a mixed case appeal with the MSPB. The person shall be advised that he or she may not initially file both a mixed case complaint and an appeal on the same matter and that whichever is filed first shall be considered an election to proceed in that forum. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Election of Forum](#).
- If an employee files in both forums, the filing that occurred first is deemed to be an election to proceed in that forum. An election is not valid unless the agency properly informed the appellant of the election requirement and its consequences. *Moore v. Department of Justice*, [109 LRP 60261](#), [112 MSPR 382](#) (MSPB 2009).

Burden of proof

- An employee who processes a mixed complaint through the EEO process bears the burden of proving the action was based on a discriminatory motive. *Texas Department of Community Affairs v. Burdine*, [81 FEOR 9003](#), 450 U.S. 248 (U.S. 1981).
- An employee who processes a mixed appeal through the MSPB process puts the burden of proving the legality of the action on the agency. The affirmative defense of proving discrimination still rests with the employee. [5 CFR 1201.56](#).

Statute of limitations

- The statute of limitations is tolled if the agency provides incorrect advice to an employee. *Jenkins v. Department of the Army*, [96 FEOR 3068](#), EEOC No. 05940721 (EEOC 1996).
- The statute of limitations is tolled if an employee improperly files a discrimination claim with the MSPB. *McWright v. Department of Education*, [91 FEOR 3042](#), EEOC No. 01893025 (EEOC 1990).

Notice

- **Hadley:** In a case that presents a recurring theme, the EEOC held that an agency cannot give an employee erroneous MSPB appeal rights, oppose MSPB jurisdiction, and then dismiss the EEO complaint on the basis that the employee elected a remedy before the MSPB. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Incorrect Appeal Rights](#), citing *Clesceri v. Department of Homeland Security*, [108 LRP 55339](#), EEOC No. 0120081941 (EEOC OFO 2008).
- When an agency issues a final decision on a mixed case complaint, the agency must inform the employee that she can appeal to the MSPB or file a civil action in District Court. If the agency provides the employee with incorrect appeal rights, the MSPB likely will find that the employee had good cause if she files a late appeal. *Toyama v. Merit Systems Protection Board*, [107 LRP 12578](#), 4 F.3d 1361 (Fed. Cir. 2007).
- **Hadley:** When an agency fails to give MSPB appeal rights and, as a result, the case becomes so "enmeshed" in the EEO process that it would be prejudicial to move it to the board, the commission will take jurisdiction over the case. For example, in *Lucas v. Department of the Navy*, [99 FEOR 3057](#), EEOC No. 01965130 (EEOC 1998), the EEOC took jurisdiction over a constructive discharge case where the agency failed to inform the complainant of his board appeal rights, the case had been in the EEO process for five years, and the agency had issued a decision on the merits. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Failure to Give Hearing Rights](#).
- When an MSPB appeal raising an issue of discrimination is dismissed on jurisdictional grounds, the agency must notify the complainant of the employee's right to contact an EEO counselor within 45 days to raise the discrimination claim. The date of the MSPB appeal is considered the first contact with the counselor for timeliness purposes. *LaMothe v. U.S. Postal Service*, [96 FEOR 1027](#), EEOC No. 01955527 (EEOC OFO 1996). [EEOC MD-110, Chapter 4](#).
- In light of the U.S. Supreme Court's decision in *Kloeckner v. Solis*, [112 LRP 58512](#), 133 S. Ct. 596 (U.S. 2012), the MSPB decided it would provide notice of mixed case appeal rights in all cases in which the appellant was affected by an action that she may appeal.

to the board and alleges prohibited discrimination, regardless of whether it decides the claim of discrimination. *Cunningham v. Department of the Army*, [113 LRP 3784](#), [119 MSPR 147](#) (MSPB 2013).

- An administrative judge's error in failing to provide the appellant with notice of mixed case appeal rights did not prejudice the appellant's substantive rights. *Irwin v. Office of Personnel Management*, [104 LRP 6902](#) (MSPB 2004).

Appeals process

- A federal employee bringing a mixed case may proceed in a variety of ways:
 - She may first file a discrimination complaint with the agency itself, much as an employee challenging a personnel practice that is not appealable to the MSPB could do. [5 CFR 1201.154](#) (a); [29 CFR 1614.302](#) (b). If the agency decides against her, the employee may then either take the matter to the MSPB or bypass further administrative review by suing the agency in District Court [5 CFR 1201.154](#) (b); [29 CFR 1614.302](#) (d)(1)(i).
 - Alternatively, the employee may initiate the process by bringing her case directly to the MSPB, forgoing the agency's own system for evaluating discrimination charges. [5 CFR 1201.154](#) (a); [29 CFR 1614.302](#) (b). If the MSPB upholds the personnel action (whether in the first instance or after the agency has done so), the employee again has a choice: She may request additional administrative process, this time with the EEOC, or else she may seek judicial review. [5 USC 7702](#) (a)(3), (b); [5 CFR 1201.161](#); [29 CFR 1614.303](#).

Kloeckner v. Solis, [112 LRP 58512](#), 133 S. Ct. 596 (U.S. 2012).

- A federal employee who claims that an agency action appealable to the MSPB violates an antidiscrimination statute listed in [5 USC 7702](#) (a)(1) should seek judicial review in a district court, not the Federal Circuit, regardless of whether the MSPB decided her case on procedural grounds or on the merits. *Kloeckner v. Solis*, [112 LRP 58512](#), 133 S.Ct. 596 (U.S. 2012).
- The proper review forum when the MSPB dismisses a mixed case on jurisdictional grounds is district court. In mixed cases in which the employee (or former employee) complains of serious adverse action prompted, in whole or in part, by the employing agency's violation of federal antidiscrimination laws, the district court is the proper forum for judicial review. *Perry v. Merit Systems Protection Board*, [117 LRP 24961](#) (U.S. 2017).
- The EEOC must determine whether the decision of the MSPB, with respect to discrimination, constitutes an incorrect interpretation of any applicable law, rule, regulation or policy directive, or is not supported by the evidence in the record as a whole. *Williams v. Department of Housing and Urban Development*, [90 FEOR 24071](#), EEOC No. 03900084 (EEOC 1990).
- A final agency decision on a mixed complaint may be appealed to the MSPB, *but not* to the EEOC. [29 CFR 1614.302](#) (d)(1)(ii). Also upon the filing of a complaint, the agency must notify the complainant that if she is dissatisfied with the agency's final decision on the mixed case complaint, she may appeal the claim to the MSPB (not the EEOC) within 30 days of receipt of the agency's final decision. [5 CFR 1201.154](#) (a); [EEOC MD-110, Chapter 4](#).
- An employee may appeal the decision of the MSPB of a mixed appeal to the EEOC, for a review of the discrimination issue, or to the appropriate District Court. *Washington v. Department of the Navy*, [94 FEOR 7018](#), 10 F.3d 1421 (9th Cir. 1993).
- The U.S. Court of Appeals, Federal Circuit lacks authority to review an MSPB decision on the merits in a mixed case unless the discrimination claim is waived. *Council v. Department of Veterans Affairs*, [110 LRP 33854](#) (Fed. Cir. 2010, unpublished).
- An employee may file in a District Court if 120 days have elapsed and the employee has not received a final decision from the MSPB on a mixed appeal. *Butler v. Department of the Army*, [99 FEOR 7038](#), 164 F.3d 634 (D.C. Cir. 1999).
- If the employee files in District Court once the MSPB fails to reach a decision within 120 days, or under any other circumstance in which the District Court may hear the case under [5 USC 7702](#), the case shall be heard as a unit, including both discrimination and nondiscrimination complaints. *Ikossi v. Department of the Navy*, [108 LRP 12845](#), 516 F.3d 1037 (D.C. Cir. 2008).
- A District Court will review the MSPB determination of a nondiscriminatory issue under a deferential standard, but will review the discrimination claim *de novo*. *Sloan v. Department of the Army*, [98 FEOR 7053](#), 140 F.3d 1255 (9th Cir. 1998).
- An appellant may not raise an allegation of discrimination for the first time when submitting a MSPB decision for review by the EEOC. *Loveland v. Department of the Air Force*, [88 FEOR 20762](#), EEOC No. 03880157 (EEOC 1988).

Special Panel

- **Hadley:** The means of resolving conflicting decisions of the EEOC and the MSPB, when those agencies cannot resolve the conflict through the referral process, is provided by the so-called Special Panel. The Special Panel is composed of a Chairman appointed by the President with the advice and consent of the Senate, and one member each of the MSPB and the EEOC appointed by the respective chairman of those bodies each time the panel convenes. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Referral to Special Panel](#), citing [29 CFR 1614.307](#) (a).
- In the event the EEOC seeks to overrule the MSPB on a discrimination issue, the MSPB has the option of concurring with the EEOC or reaffirming its decision and invoking the Special Panel to decide the case. [29 CFR 1614.306](#).
- **Broida:** The MSPB may issue a decision disagreeing with the EEOC and certify the case to the Special Panel only if it concludes that the EEOC has misinterpreted or misapplied civil service law. It may not disagree with the EEOC on the application of discrimination law. [Broida Guide to MSPB Law and Practice: Special Panel](#), citing *Ignacio v. U.S. Postal Service*, [86 FMSR 7026](#), [30 MSPR 471](#) (Special Panel 1986); *Lynch v. Department of Education*, [86 FMSR 7073](#), [31](#)

[MSPR 519](#) (Special Panel 1986); *see also Boots v. U.S. Postal Service*, [105 LRP 30425](#), [100 MSPR 513](#) (Special Panel 2005).

- The Special Panel deferred to the EEOC on a disability discrimination claim involving a denied request for a modified work schedule as a reasonable accommodation and adopted the EEOC's decision in *Petitioner v. Department of Homeland Security*, [114 LRP 32342](#), EEOC Petition No. 0320110053 (EEOC 2014) as the decision of the Special Panel. MSPB Vice-Chair Anne M. Wagner dissented, arguing that the EEOC's decision constituted a misinterpretation of long-standing MSPB precedent governing the adjudication of an adverse action based on a charge of physical inability to perform. *Alvara v. Department of Homeland Security*, [114 LRP 42609](#) (Special Panel 09/29/14).

Other Resources

- [EEOC Management Directive 110, Chapter 4: Procedures for Related Processes](#)
- [Facts About Federal Sector Equal Employment Opportunity Complaint Processing Regulations](#)
- [EEOC: Mixed Cases in the Federal EEO Complaint Process \(FY 2025\)](#)
- [Broida Guide to MSPB Law and Practice: Mixed Case Notice Problems](#)
- [Broida Guide to MSPB Law and Practice: Procedures in Mixed Cases](#)
- [Hadley Guide to Federal Sector Equal Employment Law and Practice: Mixed Cases Before the Merit Systems Protection Board](#)

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